

(49)

Tentative Ruling

Re: ***Okwelogu v. BSR Trucking Inc., et al***
Superior Court Case No. 26CU01127

Hearing Date: August 13, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant. Orders signed. No appearances necessary.

To set a status conference for Wednesday, November 18, 2026, at 3:30 p.m., in Department 403, for confirmation of deposit of the minor's funds into a blocked account. If an Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) is filed at least five court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026 .
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Ellis v. Planet Vegan, LLC et al.***
Superior Court Case No. 24CECG02698

Hearing Date: August 13, 2026 (Dept. 403)

Motion: (1) By Defendants Planet Vegan, LLC and Michael McElroy to Compel Further Responses to Special Interrogatories, Set Two and Request for Sanctions
(2) By Defendants Planet Vegan, LLC and Michael McElroy to Compel Further Responses to Request for Production, Set Two, and Request for Sanctions

Tentative Ruling:

To deny the motions as moot.

To impose monetary sanctions in the total amount of \$2,280 in favor of defendants Planet Vegan, LLC and Michael McElroy and against plaintiff Joe Ellis and his counsel of record joint and severally. Within 30 days of service of the order by the clerk, plaintiff Joe Ellis and his counsel of record shall pay sanctions to counsel for defendants Planet Vegan, LLC and Michael McElroy.

Explanation:

Defendants Planet Vegan, LLC and Michael McElroy (together "Defendants") seeks to compel further responses from plaintiff Joe Ellis ("Plaintiff") as to special interrogatories, and requests for production propounded. In opposition, plaintiff Joe Ellis ("Plaintiff") represents that on July 24, 2026, he has since served further responses.² The further responses necessitate further meet and confer efforts, including as to whether objections are inappropriately asserted. (E.g., Code Civ. Proc., § 2030.300, subd. (b)(1).) The motions as to the original responses are therefore denied as moot.

Sanctions are still warranted. Monetary sanctions are sufficient to compel disclosure so that the party seeking the discovery can prepare their case, and secondarily to compensate the requesting party for the expenses incurred in enforcing discovery. (*Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256, 262.) Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust."

While further responses were made, they came at Defendants' expense to seek court orders to do so. Moreover, evidence was submitted that certain delays were anticipated. In an email correspondence dated April 1, 2026, Plaintiff stated having sought additional time to response, and which Defendants apparently declined

² To the extent that the opposition papers were untimely, the court exercises discretion to consider the late filings. (Cal. Rules of Ct., rule 3.1300(d).)

accommodating. (Velazquez Decl., Ex. C.) The email suggests that an objections-only response was made as a consequence thereof. (*Ibid.*) Plaintiff then suggested that meaningful responses were expected by April 3, 2026. These motions were filed on May 19, 2026. The court finds no circumstances that would render the imposition of sanctions as unjust, and further finds that the delay was the result of counsel's actions.

Defendants submit an hourly rate of \$190, which is approved. Sanctions are imposed in the total amount sought of \$2,280 in favor of defendants Planet Vegan, LLC and Michael McElroy and against plaintiff Joe Ellis and his counsel of record, joint and severally.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)